

**ONTARIO
SUPERIOR COURT OF JUSTICE**

B E T W E E N:

DIXIE CAROL WINTERS

PLAINTIFF

- and -

LOBLAWS SUPERMARKETS LIMITED
OPERATING AS REAL CANADIAN
SUPERSTORE

DEFENDANT

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)
) W. DANIAL NEWTON, for the
) PLAINTIFF
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) GREGORY R. BIRSTON, for the
) DEFENDANT
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) **HEARD: 2005-07-11**

DECISION ON COSTS

REGIONAL SENIOR JUSTICE J. F. McCARTNEY

[1] Counsel attended before me this date to present argument regarding costs. It was agreed by counsel that the Plaintiff should pay the Defendant costs on a partial indemnity basis, and the only issue to be decided was the quantum of same. The Defendant presented a Bill of Costs on a partial indemnity basis in the amount of \$59,683.90.

[2] This case demonstrates why a new approach to costs has become necessary. This is a simple slip and fall accident resulting in a moderately serious injury to the Plaintiff. However, the successful Defendant's Bill of Costs, based on the Costs Grid, far outstrips anything that could be considered fair/reasonable or in proportion to the case itself.

[3] The recommended procedure, as set out by the Court of Appeal in the Boucher¹ case is to review the Costs Grid calculation, but then to consider what a fair and reasonable amount should be paid by the unsuccessful litigant, rather than ordering them to pay the actual costs to the successful litigant.

[4] The difficulty in applying the Costs Grid in this case was the excessive amount of work done on a straight forward file by the highly trained persons working on the case. As examples, the Defendant's counsel prepared 72.5 hours for trial preparation, his staff recorded 112.5. Regarding pleadings, while Defendant's counsel recorded 7.2 hours, his staff recorded 27.4. With regard to the pre-trial conference, while counsel recorded 7.3 hours, those working under him recorded 30.5 hours.

[5] With respect to disbursements, I agree with counsel for the Plaintiff that the expert's fees are excessive, as are the amounts charged for photocopying.

[6] All considered I am prepared to allow costs as follows:

Pleadings	\$ 2,000.00
Discovery	\$ 2,000.00
Pre-trial Conference	\$ 2,000.00
Trial Preparation	\$ 8,000.00
Attendance at Trial	\$ 6,000.00
Disbursements	\$ 5,000.00
<u>TOTAL</u>	<u>\$25,000.00 (plus appropriate GST)</u>

REGIONAL SENIOR JUSTICE J. F. McCARTNEY

Released: 2005-07-18

¹ Bocher et al v. Public Accountants Council for the Province of Ontario et al
71 O.R. (3d) 291

COURT FILE NO.: 99-0141

DATE: 2005-07-18

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